

26IWUD00922 26IWUD00922

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-07-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C8%2C07%2F22%2F2026

Source SHA-256: 590dca90dddece2ff78ad85bf302407738a76ef5e68420a282c1f9c85fe73287

Case Number: 26IWUD00922 Hearing Date: July 22, 2026 Dept: 8

The demurrer is overruled and the motion to strike is denied. The complaint states a cause of action for unlawful detainer based on nonpayment of rent, as the three-day notice to pay rent or quit (which is attached to the complaint) appears on its face to comply with Code of Civil Procedure section 1161(2) and Plaintiff properly alleges service of the notice in conformity with Code of Civil Procedure section 1162. Defendants' argument regarding the Plaintiff's capacity to sue cannot be resolved via this demurrer and motion to strike, as it relies upon facts beyond the face of the complaint of which the court cannot take judicial notice. (See County of Santa Clara v. Superior Court (2023) 14 Cal.5th 1034, 1041.) The Defendants fail to support any other argument with specific references to the allegations made in the complaint. The Defendants are to file an answer only within five days' notice of this ruling.